

HOUSE No. 4021

The Commonwealth of Massachusetts

PRESENTED BY:

Angelo J. Puppolo, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to municipal housing requirements.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/15/2025</i>
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>3/31/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>4/1/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>4/8/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/8/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>4/8/2025</i>
<i>Orlando Ramos</i>	<i>9th Hampden</i>	<i>4/9/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>4/29/2025</i>

HOUSE No. 4021

By Representative Puppolo of Springfield, a petition (accompanied by bill, House, No. 4021) of Angelo J. Puppolo, Jr., and others relative to municipal housing zoning requirements. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to municipal housing requirements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The first sentence of the fifth paragraph of section 3 of chapter 40A of the
2 General Laws, as appearing in section 8 of chapter 150 of the acts of 2024, is hereby amended by
3 striking out the word “No” and inserting in place thereof the following words:- In a municipality
4 in which low or moderate income housing, as defined in section 20 of chapter 40B, does not
5 exceed 10 per cent of the housing units reported in the last federal decennial census of the city or
6 town, no.

7 SECTION 2. Said fifth paragraph of said section 3 of said chapter 40A, as so appearing,
8 is hereby further amended by striking out the second sentence and inserting in place thereof the
9 following 2 sentences:- A municipality may decide whether the use of land or structures for an
10 accessory dwelling unit under this paragraph shall require owner occupancy of either the
11 accessory dwelling unit or the principal dwelling. A municipality may decide how many
12 additional parking spaces, if any, shall be required for an accessory dwelling unit.